IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT - 1

ITEM No.12

C.P.(CAA)/20(AHM)2023 in
C.A.(CAA)/69(AHM)2022

Proceedings under Section 230-232

IN THE MATTER OF:

UKB Industries Pvt Ltd **.....Applicants**
UKB Electronics Pvt Ltd

Order delivered on: 11/09/2023

Coram:

Mr. Shammi Khan, Hon'ble Member(J)
Mr. Kaushalendra Kumar Singh, Hon'ble Member(T)

PRESENT:

For the Applicant :
For the Respondent :

ORDER

The case is fixed for pronouncement of the order. The order is pronounced in the open court, vide separate sheet.

-Sd- -Sd-

KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

SHAMMI KHAN
MEMBER (JUDICIAL)

IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD BENCH
DIVISION BENCH
COURT-1

CP (CAA) No.20/NCLT/AHM/2023
IN
CA(CAA)No.69/NCLT/AHM/2022

[In the matter of Sections 230-232 and read with other applicable provisions of the Companies Act, 2013 read with The Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016]

In the matter of Scheme of Amalgamation

of

UKB Industries Private Limited
(Petitioner Company 1/ Transferor Company)

With

UKB Electronics Private Limited
(Petitioner Company 2/ Transferee Company)

and

Their respective Shareholders and Creditors

Order pronounced on: 11.09.2023

Coram:
Mr. Shammi Khan,
Hon'ble Member (Judicial)

Mr. Kaushalendra Kumar Singh,
Hon'ble Member (Technical)

MEMO OF PARTIES

UKB Industries Private Limited
A company incorporated under the
Provisions of the Companies Act, 1956
Having its registered office situated at
Plot No. WP-168, GIDC-2 Bol Village,
Taluka-Sanand, District-Ahmedabad-382110, Gujarat.

...Petitioner Company No.1/
Transferor Company

UKB Electronics Private Limited
A company registered under the
Provisions of the Companies Act, 1956
Having its registered office at
Plot No. WP-168, GIDC-2 Bol Village,
Taluka-Sanand, District-Ahmedabad-382110, Gujarat.

...Petitioner Company No.2/
Transferee Company

Appearance:
For the Petitioners : Mr. Ravi Pahwa, Advocate
For Thakkar and Pahwa, Advocates

O R D E R

1. This joint Company Petition has been filed by the Petitioner Companies namely M/s. UKB Industries Private Limited and M/s. UKB Electronics Private Limited under Sections 230-232 of the Companies Act, 2013 (for brevity the Act) read with Companies (Compromise, Arrangement and Amalgamations) Rules, 2016 for seeking sanction of the Scheme of Amalgamation of UKB Industries Private Limited (hereinafter referred to as **Transferor Company**) into UKB Electronics Private Limited (hereinafter referred to as **Transferee Company**) and their

respective shareholders and creditors with effect from the Appointed Date i.e. 01.04.2022, as mentioned in the Scheme.

2. An affidavit in support of the petition has been sworn by Mr. Vinay Kumar Tayal on behalf of the Petitioner Company No. 1 Who is authorized representative and Mr. Manoj Tayal on behalf of the Petitioner company No. 2 who is authorized representative of the petitioner companies. The above- named authorized representatives have been authorized vide board resolution dated 07.10.2022.

3. From the records, it is seen that the first motion seeking directions for dispensing of the meeting of the Equity Shareholders, Secured Creditors and Unsecured Creditors of both the Petitioner Companies was allowed vide order dated 06.03.2023.

4. The Petitioner Companies have filed 2nd motion joint petition before this Tribunal within the time prescribed. Vide order dated 14.06.2023, this Adjudicating authority has directed the petitioner to issue notices to the statutory authorities and publication in the newspapers in “Financial Express” in English and in vernacular language both in Ahmedabad Edition. The Petitioner Companies filed an affidavit of service of notice to the statutory authorities viz., (1) Central Government through Regional Director. (2) Registrars of Companies. (3) Income Tax Authority. (4) Official Liquidator. Both the Petitioner Companies have filed common compliance affidavit as regards to publication in the Newspapers having circulation in Ahmedabad on 04.07.2023.

5. That the Regional Director, North Western Region, MCA and ROC, Ahmedabad have filed observations vide report dated 14.06.2023, which are summarized as under:-

   a) *As per para 2(c), the RD observed that the petitioner Transferee Company will be required to pay the difference of amount fees which is payable on the enhanced authorized capital of Rs. 10,30,00,000/- as on date and the total payable amount of fees which have already been paid by all the petitioners companies at the time of registration / increase in authorized capital, as the case may be. Therefore, Section 232(3)(I) of the Companies Act, 2013 should be complied with by the petitioner companies. The petitioner companies should comply with Sec. 232(3)(i) of the Act;*

   b) *The petitioner companies should pay the amount of legal fees/ costs to the Central Government.*

6. The Petitioner Companies have filed a common affidavit in reply dated 17.07.2023 in response to the report of Regional Director, wherein the petitioner companies undertakes to comply with the provisions of Section 232(3)(i) of the Companies Act, 2013 and also undertakes to pay the requisite legal fees to the Central Government as may be quantified by this Hon'ble Tribunal.

7. So far as representation made by RoC is concerned, it is submitted that as per the report of RoC, there are no complaints against the Petitioner Companies and there is also no complaint/ representation against the Scheme of Amalgamation of the

Companies. Without prejudice, a detailed reply is submitted, a copy of which is annexed at Annexure-B to the Report of RoC.

8. The Official Liquidator by filing his report dated 02.06.2023 sought following clarifications:

a) The Transferor Company to place on records the date on which the shareholders as well as shareholding pattern have changed;

b) To state as to under which process, the Transferee Company is going to issue equity shares of Rs. 36,00,000/- against the paid-up share capital of Rs. 29,96,000/-.

c) The Transferor Company to preserve its books of accounts, papers and records and has required that the Transferor Company does not dispose the documents without prior permission of Central Government as per the provisions of Section 239 of the Act.

d) The Transferee Company undertakes to pay the requisite fees to the Official Liquidator as may be quantified by this Tribunal.

9. The Petitioner Companies have filed a common affidavit in reply dated 17.07.2023 in response to the report of Official Liquidator, wherein certain clarifications were given by the petitioner companies in response to the observations made by the Official Liquidator:

a. With regard to observation made by the Official Liquidator, it was submitted that:-

i. *As on the Appointed date i.e. 01/04/2022, the shareholding pattern of the Transferor company is as follows:*

Sr. No	Name of Shareholders	No. of shares of Rs. 10/- each	%
1	Sonakshi Mittal	38,950	13.00
2	Shakuntla Devi	2,04,150	68.14
3	Pradeep Kumar Tayal	56,500	18.86
	Total	**2,99,600**	**100.00**

It was further submitted that the change in shareholding of the Transferor Company took place on 01/10/2022. The shareholding pattern post the change on 01/10/2022 is as follows:

Sr.No	Name of Shareholders	No. of shares of Rs. 10/- each	%
1	Manoj Tayal	42,282	14.11
2	Vinay Kumar Tayal	46,646	15.57
3	Aayush Tayal	46,646	15.57
4	Manik Tayal	1,64,026	54.75
	Total	**2,99,600**	**100.00**

b. *With regard to observations made regarding process of issuing equity shares, it is submitted that the Transferor company holds 36,00,000 shares of Rs. 10 each in the Transferee company. Pursuant to merger, the shares held by Transferor company in Transferee company stands cancelled and the shareholders of Transferor company will get 36,00,000 shares of Transferee company, as per the Valuation report, in discharge of the consideration.*

10. That Income Tax Department have filed their observations vide report dated 18.04.2023 and 25.4.2023 respectively giving no objection to the proposed Scheme of Amalgamation.

11. The Petitioner Companies have placed on record the Valuation Report and also filed their respective audited financial statements as on 31st March 2022 and Provisional Financial Statement as on 30th November, 2022 of the Transferor Company and Provisional Financial Statement as on 31st October, 2022 of the Transferee Company, which are annexed with the petition. The certified copies of respective Board Resolutions of both the Petitioners Companies approving the Scheme of Amalgamation are annexed with the application.

12. In compliance with the proviso to sub-section (7) of Section 230 of the Companies Act, 2013, both the Petitioner Companies have placed on record the Certificates of the respective Statutory Auditors confirming that the accounting standards treatment envisaged under the Scheme of Arrangement is, in compliance with the applicable accounting as per in Section 133 of the Companies Act, 2013.

13. Heard, the Learned Counsel for the petitioner companies and perused documents placed on record. Considered the approval accorded by the members and creditors of the Petitioner Companies to the proposed Scheme, and the objection filed by the respective regulatory authorities. The petitioner companies have also filed an undertaking to comply with the requirements raised by the respective regulators. Consequently, the sanction is

hereby granted to the Scheme under Section 230-232 of the Companies Act, 2013. The Petitioners shall, however, remain bound to comply with the statutory requirements in accordance with law and other directions as pointed out by the Regional Director.

14. Supreme Court in ***Miheer H. Mafatal V/s Mafatlal Industries Ltd JT 1996 (8) 205*** while considering the scope of the jurisdiction of the Company Court in respect of matters of sanction of the Scheme of Amalgamation as per the provisions of Section 391 read with Section 393 of the Companies Act, 1956, observed as under:

> *"It is commercial wisdom of the parties to the scheme who have taken an informed decision about the usefulness and propriety of the scheme by supporting it by the requisite majority vote that has to be kept in view by the Court. The Court certainly would not act as a court of appeal and sit in judgment over the informed view of the concerned parties to the compromised as the same would be in the realm of corporate and commercial wisdom of the concerned parties. The Court has neither the expertise nor the jurisdiction to delve deep into the commercial wisdom by the creditors and members of the company who have ratified the Scheme by the requisite majority. Consequently, the Company Courts jurisdiction to that extent is peripheral and supervisory and not appellate."*

15. As the result, the petition is allowed. The Scheme of Amalgamation is hereby sanctioned which is annexed with this

order at Annexure -A and it is declared that the same shall be binding on both the Petitioner Companies and their respective Shareholders and creditors and all concerned under the Scheme.

15. Notwithstanding the above, if there is any deficiency found or, the violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken, albeit, in accordance with the law, against the concerned persons, directors and officials of the Petitioners.

16. While approving the Scheme as above, we further clarify that this order should not be construed as an order in any manner granting exemption from payment of stamp duty, or taxes including income tax, GST etc., or any other charges or payment in accordance with law, or any kind of waiver in respect of any permission/compliance with any other requirement which may be specifically required under any law. It is further clarified that Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the Scheme and sanction of the Scheme of arrangement given hereunder shall not adversely affect the rights of Income Tax Department on any past, present or future proceedings.

17. This Tribunal orders as under:-

    i. The Scheme of Arrangement as annexed herewith as **"Annexure A"** is hereby sanctioned and it is declared that the same shall be binding on the Petitioner Companies and

their Shareholders and Creditors and all concerned under the Scheme.

ii. The Transferor Company shall, together with all its properties, rights and powers be transferred without further act or deed to the Transferee Company and accordingly the same shall pursuant to Section 232 of the Act, stand transferred to and vest in the Transferee Company for all the estate and interest of the Transferor Company. The schedule of property of the Transferor Company is annexed with this Order at **Annexure –B.**

iii. All licenses, permissions, permits, approvals, certificates, clearances, authorities, leases, tenancy, assignments, rights, claims, liberties, special status, other benefits or privileges and any power of attorney relating to the Transferor Company shall stand transferred to and vested in the Transferee Company, without any further act or deed. The Transferee Company shall be bound by the terms thereof, the obligations and duties thereunder, and the rights and benefits under the same shall be available to the Transferee Company.

iv. All the liabilities and duties of the Transferor Company be transferred, without further act or deed, to the Transferee Company and accordingly the same shall pursuant to Sections 230 & 232 of the Companies Act, 2013, be transferred to and become the liabilities and duties of the Transferee Company.

v. All contracts, agreements, insurance policies, bonds and all other instruments of whatsoever nature or description, of the Transferor Company, shall stand transferred to and vested in the Transferee Company and be in full force and effect in favour of the Transferee Company and may be enforced by or against it as fully and effectually against the Transferee Company.

vi. All taxes paid or payable by the Transferor Company including existing and future incentives, un-availed credits and exemptions, the benefit of carried forward losses and other statutory benefits, which shall be available to and vest in the Transferee Company. The Tax liability of the Transferor Company shall become a liability of the Transferee Company and any proceedings against the Transferor Company shall continue against the Transferee Company.

vii. All proceedings now pending by or against the Transferor Company in respect of the Transferor Company shall be continued by or against the Transferee Company.

viii. All employees in the service of the Transferor Company shall be deemed to have become the employees of the Transferee Company on a date on which the scheme finally takes effect on the basis that their services shall be deemed to have been continuous and not have been interrupted by reasons of the said transfer and on term and conditions no

less favourable than those on which they were/are engaged, as on the Effective Date.

ix. The Petitioner Companies are directed to lodge a copy of this Order and Annexure–A the approved Scheme duly authenticated by the Registrar of this Tribunal, with the concerned Superintendent of Stamps, for adjudication of stamp duty, and pay requisite stamp duty payable, if any, within 60 days from the date of this Order.

x. The legal and expenditure fees for the office of the Official Liquidator are quantified to Rs. 10,000/- in respect of the report of Transferor Company and the fees of the Regional Director are quantified at Rs. 10,000/-. The said fees to the Official Liquidator and Regional Director shall be paid by the Transferee Company.

xi. The Petitioner Companies are further directed to file a copy of this order along with the copy of the Scheme with the concerned Registrar of Companies, electronically, along with e-form INC-28 in addition to physical copy within 30 days from the date of issuance of the certified copy of the Order by the Registry as per relevant provisions of the Act.

xii. The Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the Scheme and if it is found that the Scheme of Arrangement ultimately results in tax avoidance or is not in accordance with the applicable provisions of Income Tax Act, then the Income Tax Dept. shall be at liberty to initiate appropriate

course of action as per law. Any sanction of the Scheme of Arrangement under Sections 230-232 of the Income Tax Act, 2013 shall not adversely affect the rights of Income Tax Department or any past, present or future proceedings and the sanction of the scheme shall not come in its way for the appropriate course of action as per law for the tax liabilities, if any.

xiii. Any person aggrieved shall be at liberty to apply to this Tribunal for any directions that may be necessary.

18. The Company Petition CP (CAA) No. 20 of 2023 connected with CA (CAA) No.69 of 2022 is disposed of in terms of the above order.

-SD- -SD-

KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

SHAMMI KHAN
MEMBER (JUDICIAL)

Vinit/Stenographer

Annexure "A"

Annexure I

15

SCHEME OF AMALGAMATION
OF
UKB INDUSTRIES PRIVATE LIMITED
("UKBIPL" OR "TRANSFEROR COMPANY")
WITH
UKB ELECTRONICS PRIVATE LIMITED
("UKBEPL" OR "TRANSFEREE COMPANY")
AND
THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS UNDER SECTIONS 230 TO 232
AND OTHER APPLICABLE PROVISIONS OF THE COMPANIES ACT, 2013

I. PREAMBLE

The Scheme of Amalgamation is presented under Chapter XV of the Companies Act, 2013 for amalgamation of UKB Industries Private Limited ("UKBIPL" or "Transferor Company") with UKB Electronics Private Limited ("UKBEPL" or "Transferee Company"), on a going concern basis, pursuant to the provisions of Sections 230 to 232 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013 read with the rules and regulations including any statutory modifications or re-enactments made thereunder. This Scheme also provides for various other matters consequential to amalgamation or otherwise integrally connected herewith.

II. BACKGROUND AND DESCRIPTION OF COMPANIES

a. **UKB Industries Private Limited ("UKBIPL" or "Transferor Company")** is a private limited company incorporated on 18th August, 1989 under the Companies Act, 1956 having its registered office at Plot no. WP-168 GIDC-2 Bol Village, Ta-Sanand, Dist. Ahmedabad, Gujrat – 382110 Its Corporate Identification Number is ('CIN') U45203GJ1989PTC135767.
The e-mail address of the company is accounts@ukbindia.com and Permanent Account Number ("PAN") is AADCM7319J.

b. **UKB Electronics Private Limited** ("UKBEPL" or "Transferee Company") is a private limited company incorporated on 7th May, 2004, under the Companies Act, 1956 having its registered office at Plot no. WP-168 GIDC-2 Bol Village, Ta-Sanand, Dist. Ahmedabad, Gujrat – 382110. Its Corporate Identification Number ('CIN') is U32109GJ2004PTC135908. The e-mail address of the company is cs@ukbindia.com and PAN is AAACU6815C.

c. As on date, the Transferor Company holds 36.65% shares of Transferee Company.

III. RATIONALE OF THE SCHEME:

With the intent of consolidating the Transferor Company and the Transferee Company, the said companies now propose, by way of this Scheme to amalgamate the Transferor Company with the Transferee Company in accordance with the terms hereof. The amalgamation of the Transferor Company with Transferee Company would inter-alia have the following benefits:

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

UKB INDUSTRIES PVT. LTD.

UKB ELECTRONICS PVT. LTD.

UKB INDUSTRIES PVT. LTD.

1. The proposed amalgamation will result in simplification and streamlining of the shareholding structure of the Transferee Company by elimination of shareholding tiers
2. The amalgamation will result in the consolidation of the value of both companies in a single entity
3. The amalgamation will result in reduction of the companies in the Group leading to reduction in compliance requirements, overheads, cash management, administrative, managerial and other expenditure and optimal utilization of various resources due to consolidation of activities.
4. The Scheme shall be beneficial and in interests of the shareholders and creditors of the Transferor Company and the Transferee Company and all concerned.

In view of the aforesaid, the Management of the Transferor Company and Transferee Company have considered and proposed the amalgamation of the Transferor Company with the Transferee Company. Accordingly, the Management of the Transferor Company and Transferee Company have formulated this Scheme of Amalgamation pursuant to the provisions of Section 230 to 232 and other applicable provisions and amendments of the Companies Act, 2013.

IV. PARTS OF THE SCHEME:

Part A	Deals with definition, interpretations and share capital
Part B	Deals with amalgamation of UKB Industries Private Limited with UKB Electronics Private Limited
Part C	Deals with general terms and conditions that will be applicable to the entire Scheme

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UKB ELECTRONICS PVT. LTD.
UKB INDUSTRIES PVT. LTD.

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PART A
DEFINITIONS AND SHARE CAPITAL

1. **DEFINITIONS**

In this Scheme, unless inconsistent with the subject or context, the following expressions shall have the following meanings:

1.1 **"Accounting Standards"** means the accounting standard as formulated by the Central Government as recommended by the Institute of Chartered Accountants of India.

1.2 **"Act" or "the Act"** means the Companies Act, 2013 and rules, regulations, circulars and notifications issued thereunder and shall include any statutory modifications, amendments or re-enactment thereto from time to time;

1.3 **"Amalgamation"** means an amalgamation as defined under Section 2(1B) of the Income-tax Act, 1961;

1.4 **"Applicable Law"** means any applicable statute, notification, bye laws, rules, regulations, guidelines, rule of common law, policy, code, directives, ordinance, orders or instructions having the force of law enacted or issued by any Appropriate Authority, including any statutory modification or re-enactment thereof for the time being in force;

1.5 **"Appropriate Authority"** means any applicable central, state or local government, legislative body, regulatory, administrative or statutory authority, agency or commission or department or public or judicial body or authority, including, but not limited, to Registrar of Companies, National Company Law Tribunal and Reserve Bank of India;

1.6 **"Appointed Date"** means 01st April, 2022 or such other date as may be fixed or approved by the National Company Law Tribunal at Ahmedabad or such other competent authorities;

1.7 **"Board of Directors"** or "Board" means the Board of Directors of UKBIPL or UKBEPL, as the case may be, and shall include a duly constituted committee thereof;

1.8 **"Effective Date"** means the date or the last of the dates on which the certified or authenticated copies of the order sanctioning this Scheme, passed by the National Company Law Tribunal at Ahmedabad Bench are filed with the Registrar of Companies, Ahmedabad, having jurisdiction over the Transferor Company and Transferee Company;

References in this Scheme to the date of **"coming into effect of this Scheme"** or "upon the **Scheme being effective"** shall mean the Effective Date.

1.9 **"Employees"** means all the employees of the UKBIPL on Effective Date;

1.10 **"Government Authorities"** means any applicable Central, State or local Government, legislative body, regulatory or administrative authority, agency or commission or any court, tribunal, board, bureau or instrumentality thereof or arbitration or arbitral body having jurisdiction.

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

UKB ELECTRONICS PVT. LTD.

UKB INDUSTRIES PVT. LTD.

1.11 **"NCLT" or "Tribunal"** means the National Company Law Tribunal, Ahmedabad Bench as constituted and authorized as per the provisions of the Companies Act, 2013 for approving any scheme of arrangement, compromise or reconstruction of companies under Chapter XV of the Companies Act, 2013, having jurisdiction over the registered offices of Transferor Company and Transferee Company and shall include, if applicable, such other forum or authority as may be vested with the powers of the NCLT under the Act;

1.12 **"Registrar of Companies"** or "ROC" in the context of UKBIPL and UKBEPL shall mean Registrar of Companies, Ahmedabad.

1.13 **"Scheme" or "the Scheme"** or **"this Scheme"** means this Scheme of Amalgamation in its present form or with any modification(s) / amendment(s) made under Clause 20 of this Scheme as approved or directed by the NCLT;

1.14 **"Transferor Company"** or "UKBIPL" means UKB Industries Private Limited, a private limited company incorporated under the provisions of Companies Act, 1956 and having its registered office at Plot No. WP-168 GIDC-2 Bol village Ta-Sanand Ahmedabad Gujarat- 384001; and

1.15 **"Transferee Company"** or "UKBEPL" means UKB Electronics Private Limited, a private limited company incorporated under the provisions of Companies Act, 1956 and having its registered office at Plot No. WP-168 GIDC-2 Bol village Ta-Sanand Ahmedabad Gujarat- 384001.

All terms and words not defined in this Scheme shall, unless repugnant or contrary to the context or meaning thereof, have the same meaning ascribed to them under the Act and other applicable laws, rules, regulations, bye-laws, as the case may be or any statutory modification or re-enactment thereof from time to time.

2. DATE OF TAKING EFFECT, OPERATIVE DATE AND OTHER CLAUSES

2.1 The Scheme shall be effective in its present form or with any modification(s) approved or imposed or directed by the NCLT or any other appropriate authority and shall become effective from the Appointed Date, as defined under this Scheme in accordance with Section 232(6) of the Act, but shall be operative from the Effective Date.

2.2 The Scheme of Amalgamation shall be in accordance with Section 2(1B) of the Income Tax Act, 1961. If any terms or provisions of the Scheme are found to be or interpreted to be inconsistent with Section 2(1B) of the Income Tax Act, 1961 at a later date, whether as a result of any amendment of law or any judicial or executive interpretation or for any other reason whatsoever, the aforesaid provision of the Income Tax Act, 1961 shall prevail. The Scheme shall then stand modified to the extent deemed necessary to comply with the said provisions. Such modification will, however, not affect other parts of the Scheme.

3. SHARE CAPITAL

3.1 The Authorised, issued, subscribed and paid-up share capital of UKBIPL as on 31st March, 2022 is as under:

Particulars	Amount (in Rs.)
Authorised share capital	
3,00,000 equity shares of Rs. 10/- each	30,00,000
Total	**30,00,000**
Issued, subscribed and paid-up share capital	
2,99,600 equity shares of Rs. 10/- each	29,96,000
Total	**29,96,000**

Subsequent to 31st March, 2022 and till the date of the Scheme being approved by the Board of Directors of UKBIPL, there is no change in the issued, subscribed and paid-up capital of Transferor Company. The shares of UKBIPL are not listed on any Stock Exchange.

3.2 The authorised, issued, subscribed and paid-up share capital of UKBEPL as on 31st March, 2022 is as under:

Particulars	Amount (in Rs.)
Authorised share capital	
1,00,00,000 equity shares of Rs. 10/- each	10,00,00,000
Total	**10,00,00,000**
Issued, subscribed and paid-up share capital	
98,22,000 equity shares of Rs. 10/- each	9,82,20,000
Total	**9,82,20,000**

Subsequent to 31st March, 2022 and till the date of the Scheme being approved by the Board of Directors of UKBEPL, there is no change in the issued, subscribed and paid-up capital of Transferee Company. The shares of UKBEPL are not listed on any Stock Exchange.

4. OBJECTS

4.1 The main objects of UKBIPL are as follows:

- *"To build, construct, maintain and run cold storage and ice factories and other related refrigeration and preservation work and to manufacture Plant and Machinery for cold storage, ice factory and other selected industry."*

4.2 The main objects of UKBEPL are as follows:

- *"To manufacture, get manufactured, assemble, repair, design, test, erect, commission, buy, sell, import, export, hire, exchange, alter, improve or otherwise deal in all kind of electrical & electronics goods, instruments, components or appliances of every kind or description including but not limited to power cords, switches, wires and cables, including EBXL cable, connectors, wire harness and all type of electronic controllers, AC to DC converters (Adaptor, charger), On/ off Socket Lamp, remote, isolator, adaptor, mobile battery charger, EV chargers, data cable with its allied products including designing and development of PCB and manufacturing of brass pins, current transformers, switches, plugs, starters, fuses, rotary*

control panel, electric motor, immature circuit breakers, various type of thermoplastic and metallic plugs, adapters, dimmers and all electronic moulded parts and other consumer durable appliances or allied products, by-products, substances or substitutes for all or any of them.

- To carry on in India or elsewhere, the business of manufacturing, buying, selling, marketing, supplying, importing, exporting, trading, storing, distributing, transporting or otherwise deal in electrical, metallic, accessories and components, apparatus, tools, appliances, hardware products directly or indirectly as selling agents or C&F agents or wholesalers or retailers of aforesaid products and designing, developing, erecting, installing, setting up, operating, maintaining, managing, owning, leasing, hiring retail or wholesale outlets, terminals, depots, showrooms, storage tanks, warehouses, godowns, objects, equipment, devices, facilities, infrastructure and to provide other related and ancillary services, facilities, assets or infrastructure etc.
- To carry on the business of import, export, purchase, sale, manufacture or otherwise deal in Solar casing, Solar & Non Solar lighting system, Solar power generating system, Solar inverter, Solar charge controller, Solar components, Solar plastic components, Transformers & wound components etc."

5. DISCLOSURES

5.1 No investigation or proceedings under the Act are pending against UKBIPL or UKBEPL.

5.2 The following documents are available for inspection by members and creditors at the registered office of UKBIPL and UKBEPL:

- Audited Financial Statements for the year ended 31st March, 2022 of UKBIPL and UKBEPL
- Copy of Scheme of Amalgamation
- The Certificate issued by Auditor of UKBEPL to the effect that the accounting treatment proposed in the Scheme is in conformity to the Accounting Standards prescribed under section 133 of the Companies Act, 2013.

5.3 This Scheme does not involve any reduction in the share capital of UKBIPL and UKBEPL. Pursuant to the amalgamation, Transferee Company will issue same number of shares to shareholders of Transferor Company as were held by Transferor Company in Transferee Company prior to the amalgamation.

5.4 The name of UKBIPL has been changed in the last five years, the details of which are provided below. The name of UKBEPL has not been changed in last five years.

The name of UKBIPL was changed from Manglam Cold Storage Private Limited to UKB Industries Private Limited with effect from 9th December, 2021.

5.5 The Registered Office of UKBIPL has been changed in last five years. The details of the same are provided hereunder:

The registered office of UKIBPL was changed within same state but outside city from 21-D, Vasant Vihar, Saharanpur - 247122 Uttar Pradesh to C-118, Sector – 63, Noida – 201301 G.B Nagar, Uttar

Pradesh. Therefore, with effect from 04/02/2022 the registered office of the company is C-118, Sector – 63, Noida – 201301 G.B Nagar, Uttar Pradesh.

The registered office of UKIBPL was changed from the state of Uttar Pradesh to the state of Gujarat. Therefore, with effect from 26/09/2022 the registered office of the company is situated at Plot No. WP-168 GIDC-2 Bol village Ta-Sanand Ahmedabad Gujarat- 384001.

5.6 The Registered Office of UKBEPL has been changed in last five years. The details of the same are provided hereunder:

The registered office of UKEBPL was changed within same state from 7, Functional Industrial Estate, Patparganj Delhi - 110092 to 10/2 Block 10 Subhash Gali, Vishwas Nagar Shahdara East Delhi – 110032. Therefore, with effect from 16/07/2018 the registered office of the company was situated at 10/2 Block 10 Subhash Gali, Vishwas Nagar Shahdara East Delhi – 110032.

The registered office of UKEBPL was changed within same state from 10/2 Block 10 Subhash Gali, Vishwas Nagar Shahdara East Delhi – 110032 to C-117, Ground Floor, Vikash Marg, Karkardooma – 110092 Delhi. Therefore, with effect from 21/12/2018 the registered office of the company was situated at C-117, Ground Floor, Vikash Marg, Karkardooma – 110092 Delhi.

The registered office of UKEBPL was changed from NCT of Delhi to the state of Gujarat. Therefore, with effect from 03/10/2022 the registered office of the company is situated at Plot No. WP-168 GIDC-2 Bol village Ta-Sanand Ahmedabad Gujarat- 384001.

UKB INDUSTRIES PVT. LTD.

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

UKB ELECTRONICS PVT. LTD.

UKB INDUSTRIES PVT. LTD.

PART B

AMALGAMATION OF UKB INDUSTRIES PRIVATE LIMITED

WITH

UKB ELECTRONICS PRIVATE LIMITED

6. TRANSFER AND VESTING OF PROPERTIES, ASSETS AND LIABILITIES OF UKBIPL

6.1 Upon coming into effect of this Scheme and with effect from the Appointed Date and subject to the provisions of the Scheme, the entire business of UKBIPL including all its properties and assets, (whether movable or immovable, tangible or intangible), land and building, leasehold assets and other properties, real, in possession or reversion, present and contingent assets (whether tangible or intangible) of whatsoever nature, all the receivables, advances, deposits etc. including, without limitation, all the movables and immovable properties and assets of UKBIPL comprising amongst others all plant and machinery, investments, and business licenses, permits, authorizations, if any, rights and benefits of all agreements and all other interests, rights and powers of every kind, nature and description whatsoever, privileges, liberties, easements, advantages, benefits and approvals, advance and other taxes paid to the authorities, brand names, trademarks, copy rights, lease, tenancy rights, statutory permissions, consents and registrations, all rights or titles or interest in properties by virtue of any court decree or order, all records, files, papers, contracts, no-objection certificate from any authorities, including the municipal authorities, town planning authority, development authority, electricity board, licenses, power of attorney, lease, tenancy rights, letter of intents, permissions, benefits under income tax such as credit for advance tax, tax deducted at source, minimum alternate tax credit, credit for goods & service tax, sales tax / value added tax , goods & service tax and / or any other statues, incentives, if any, and all other rights, title, interest, contracts, consent, approvals or powers of every kind and description, agreements shall, pursuant to the order of the NCLT and pursuant to the provisions of the Act and without further act, instrument or deed, but subject to the charges affecting the same be transferred and/or deemed to be transferred to and vested in UKBEPL on a going concern basis so as to become the properties and assets of UKBEPL.

6.2 Without prejudice to the generality of Clause 6.1 above, upon coming into effect of this Scheme and with effect from the Appointed Date:

(a) Subject to the provisions of this Scheme, as specified hereinafter, and with effect from the Appointed Date, the entire business of UKBIPL including all debts, liabilities, duties and obligations of UKBIPL of every description and also including, without limitation, all the movable properties and assets of UKBIPL comprising amongst others all investments, vehicles, furniture and fixtures, computers, office equipment, permits, authorizations, if any, rights and benefits of all agreements and all other interests, rights and powers of every kind, nature and description whatsoever, privileges, liberties, easements, advantages, benefits and approvals, shall without any further act or deed, but subject to the charges affecting the same be transferred and/or deemed to be transferred to and vested in UKBEPL as a going concern so as to become the assets and liabilities of UKBEPL.

(b) Without prejudice to the provisions of Clause 6.2. (a) above, in respect of such assets and properties of UKBIPL as are movable in nature or incorporeal property or are otherwise

capable of transfer by manual delivery or by endorsement and/or delivery, the same shall be so transferred by UKBIPL and shall, upon such transfer, become the assets and properties of UKBEPL as an integral part of the entire business of the UKBEPL, without requiring any separate deed or instrument or conveyance for the same.

(c) In respect of movables other than those dealt with in Clause 6.2 (b) above including sundry debtors, bills, loans and advances, deposits of any kind and other current assets, if any, whether receivable in cash or kind or for the value to be received, cash and bank balances, investments, etc., shall on and from the Appointed Date stand transferred to and vested in UKBEPL without any notice or other intimation to the debtors or depositee or any person, as the case may be so that the said debt, loan, advance, deposit, investments, etc. stands transferred to and vested in UKBEPL.

6.3 Upon the coming into effect of this Scheme and with effect from the Appointed Date, incentives, rights, claims, leases, tenancy rights, liberties, permissions, approvals or consents relating to and / or held by UKBIPL and all rights and benefits that have accrued or which may accrue to UKBIPL, whether before or after the Appointed Date shall stand vested in or transferred to UKBEPL, pursuant to the Scheme, without any further act or deed and shall remain valid, effective and enforceable on the same terms and conditions and shall be appropriately mutated by the statutory authorities concerned in favour of UKBEPL pursuant to this Scheme. In so far as various incentives, subsidies, special status and other benefits or privileges granted by any government body, local authority or by any other person, or enjoyed and availed of by UKBIPL shall vest with and be available to UKBEPL on the same terms and conditions.

6.4 Upon the coming into effect of this Scheme and with effect from the Appointed Date, all debts, liabilities, duties and obligations of every kind, nature and description pertaining to UKBIPL UKIBPL shall also without any further act or deed, be transferred to or deemed to be transferred to UKBEPL, so as to become from the Appointed Date the debts, liabilities, duties and obligations of UKBEPL and it shall not be necessary to obtain the consent of any third party or other person who is a party to any contract or arrangement by virtue of which such debts, liabilities, duties and obligations have arisen in order to give effect to the provisions of this sub-clause.

6.5 All taxes of any nature, duties, cess or any other like payments or deductions made by UKBIPL to any statutory authorities such as Income Tax, Sales Tax, Value Added Tax, Goods & Service Tax etc. or any tax deduction/collection at source, relating to the period after the Appointed Date and upto the Effective Date shall be deemed to have been on account of and on behalf of UKBEPL and the relevant authorities shall be bound to transfer to the account of and give credit for the same to UKBEPL upon the coming into effect of this Scheme and upon relevant proof and documents being provided to the said authorities.

7. PERMIT, CONSENTS AND LICENCE

7.1 Upon the coming into effect of this Scheme, all the statutory licenses, permits, consents, quotas, approvals, incentives, subsidies, rights, claims, leases, tenancy rights, liberties, allotments, insurance cover, clearances, authorities, privileges, easements, rehabilitation schemes, special status and other benefits or privileges enjoyed or conferred upon or held or availed of by, and all rights and benefits that have accrued to the UKBIPL, shall without any further act, instrument or

deed, be transferred to, and vest in, or be deemed to have been transferred to, and vested in, and be available to, UKBEPL so as to become as and from the Effective Date, the estates, assets, rights, title, interests and authorities of UKBEPL and shall remain valid, effective and enforceable on the same terms and conditions to the extent permissible in Applicable Law.

7.2 Upon the Effective Date and until the licenses, permits, quotas, approvals, incentives, subsidies, rights, claims, leases, tenancy rights, liberties, allotments, insurance cover, clearances, authorities, privileges, easements, rehabilitation schemes, special status are transferred, vested, recorded, effected, and/or perfected, in the record of the Appropriate Authority, in favour of UKBEPL, UKBEPL is authorized to carry on business in the name and style of the UKBIPL and under the relevant license and/or permit and/or approval, as the case may be, and UKBEPL shall keep a record and/or account of such transactions.

8. CONSIDERATION

8.1 Upon the coming into effect of this Scheme and consequent to the amalgamation of UKBIPL with UKBEPL, UKBEPL shall, without any further act or deed, issue and allot equity shares credited as fully paid-up, to the extent indicated below, to the members of UKBIPL, holding fully paid up equity shares in UKBIPL and whose names appear in the register of members of the UKBIPL on the Record Date or to such of their respective heirs, executors, administrators or other legal representative or other successors in title as the case may be

<u>On merger of UKBIPL with UKBEPL</u>

36,00,000 (Thirty Six Lacs) fully paid up Equity Shares of Rs. 10 each of UKBEPL against 36,00,000 (Thirty Six Lacs) fully paid up Equity Shares of Rs. 10 each of UKBEPL, fully paid up Equity Shares of Rs. 10 each held by UKBIPL in UKBEPL shall be issued and allotted to the Equity Shareholders of UKBIPL in proportion of their shareholding in UKBIPL."

8.2 It is hereby clarified that pursuant to the amalgamation, Transferee Company will issue same number of shares to shareholders of Transferor Company as were held by Transferor Company in Transferee Company prior to the amalgamation.

8.3 The equity shares to be issued and allotted as provided in clause 8.1 above shall be subject to the provisions of the memorandum and articles of association of UKBEPL and shall rank pari-passu in all respects with the then existing equity shares of UKBEPL including with respect to dividend, bonus entitlement, rights' shares entitlement, voting rights and other corporate benefits.

8.4 Pursuant to Share Exchange Ratio, if any, shareholder of UKBIPL is entitled to fractional entitlement then the same shall be rounded off to the nearest integer. A fraction of less than half shall be rounded down to the nearest lower integer and a fraction of half or more shall be rounded up to the nearest higher integer.

8.5 In the event that UKBEPL restructure its equity share capital by way of share split, consolidation of shares or issue of bonus shares, etc. during the pendency of the Scheme, the Share Exchange Ratio shall be adjusted accordingly to take into account the effect of any such corporate actions.

25

8.6 All those shareholders who hold shares of UKBIPL in physical form shall have an option to receive the equity shares, as the case may be, in dematerialized form provided the details of their account with the Depository Participant are intimated in writing to UKBIPL and / or its Registrar. The shareholders who fail to provide such details shall be issued equity shares in physical form.

8.7 Upon the coming into effect of this Scheme, inter-company holding, if any, between the UKBIPL and UKBEPL, shall be cancelled pursuant to this Scheme.

8.8 The Board of UKBEPL shall, if and to the extent required, apply for and obtain any approvals from concerned Government /Regulatory authorities and undertake necessary compliance for the issue and allotment of equity shares to the members of UKBIPL pursuant to clause 8.1 of the Scheme.

8.9 The issue and allotment of the equity shares to the shareholders of UKBIPL as provided in this Scheme, is an integral part thereof and shall be deemed to have been carried out without requiring any further act on the part of UKBEPL or its shareholders and as if the procedure laid down under Section 42 read with Section 62 of the Act and any other applicable provisions of the Act, as may be applicable, and such other statutes and regulations as may be applicable were duly complied with.

9. INCREASE AND CONSOLIDATION OF AUTHORISED SHARE CAPITAL

9.1 Upon the effectiveness of this Scheme, the authorised share capital of UKBIPL shall be merged with that of UKBEPL without payment of any additional fees and duties to the extent duly paid by UKBIPL on such increased authorised share capital. The fees and stamp duty paid by UKBIPL on its Authorised Share Capital shall be set-off against any fees payable by UKBEPL on increase in its Authorised Share Capital subsequent to amalgamation. Balance fees, if any, after the aforesaid set off shall be duly paid by UKBEPL upon sanctioning of the Scheme.

9.2 Consequently, Clause V of the Memorandum of Association of UKBEPL shall, without any further act, instrument or deed, be and shall stand altered, modified and amended pursuant to Sections 13 and Section 61 of the Companies Act, 2013, as the case may be in the manner set out below and be replaced by the following clause:

"The authorised share capital of the Company is INR 10,30,00,000 (Rupees Ten Crores and Thirty Lacs only) divided into 1,03,00,000 (One Crore three lacs only) Equity shares of INR 10 (Rupees Ten only)"

each with such rights, privileges and conditions attaching thereto as are provided by the regulations of the company for the time being, with power to increase and reduce the capital of the company and to divide or sub-divide the shares in the capital for the time being into several classes and to attach thereto respectively such preferential, qualified or special rights, privileges or conditions as may be determined by or in accordance with the Articles of the Company for the time being and to modify or abrogate of any such rights, privileges or conditions in such manner as may be permitted by Act, or provided by the Articles of the Company for the time being."

9.3 It is clarified that the approval of the shareholders of UKBEPL to the Scheme shall also be deemed to be their consent / approval to the consequential alteration of the Memorandum and Articles of Association of UKBEPL and UKBEPL shall not be required to seek separate consent / approval of its shareholders for such alteration of the Memorandum and Articles of Association of the UKBEPL as required under Sections 13, 14, 61 and 64 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013.

9.4 Pursuant to this Scheme, UKBEPL shall file the necessary documents/ intimations as per the provisions of Companies Act, 2013 with the Registrar of Companies, Ahmedabad or any other applicable authority to record the change in the authorised share capital, if required.

10. PROFITS, DIVIDENDS, BONUS/ RIGHT SHARES

10.1 UKBIPL and UKBEPL shall be entitled to declare and pay dividends, to their respective shareholders in respect of the accounting period ending March 31, 2022 consistent with the past practice or in ordinary course of business, whether interim or final. Any other dividend shall be recommended/declared only by the mutual consent of the respective Board of Directors of UKBIPL and UKBEPL.

10.2 It is clarified that the aforesaid provisions in respect of declaration of dividends (whether interim or final) are enabling provisions only and shall not be deemed to confer any right on any shareholder of the UKBIPL and UKBEPL to demand or claim or be entitled to any dividends which, subject to the provisions of the said Act, shall be entirely at the discretion of the respective Boards of the UKBIPL and UKBEPL as the case may be, and subject to approval, if required, of the shareholders of the UKBIPL and UKBEPL as the case may be.

11. ACCOUNTING TREATMENT

Accounting Treatment in the books of Transferee Company

11.1 Upon the Scheme becoming effective and with effect from the Appointed Date, UKBEPL shall account for the amalgamation in its books as per Accounting Standard ('AS') inter alia taking into consideration the 'pooling of interest method of accounting' prescribed under AS-14 – Accounting for Amalgamations, issued by The Institute of Chartered Accountants of India.

11.2 Upon coming into force of this Scheme and with effect from the Appointed Date, all the assets, properties and liabilities appearing in the books of the Transferor Company, shall be recorded in the books of the Transferee Company at their respective book values as appearing in the books of the Transferor Company on the Appointed Date.

11.3 The Transferee Company shall issue new shares to the shareholders of Transferor Company equivalent to the number of shares held by the Transferor Company at face value.

11.4 The Transferee Company shall aggregate all the reserves (general reserves, free reserves, capital reserves, securities premium or reserves of any other nature), if any, vested in it pursuant to the transfer of the entire business of the Transferor Company at their respective book values as

specified in the books of accounts of the Transferor Company and continue to treat them as such in its books of accounts.

11.5 The loans and advances or payables or receivables or investment of any kind, held inter se, if any, between the Transferor Company and the Transferee Company as appearing in their respective book of accounts shall stand cancelled as on the Appointed Date.

11.6 The difference between the above shall be adjusted against the reserves of the Transferee Company.

11.7 In case of any difference in the accounting policy between the Transferor Company and the Transferee Company, the impact of the same till the Appointed Date will be quantified and recorded in accordance with the applicable Accounting standards notified under the Act to ensure that the financial statements of the Transferee Company reflect the financial position on the basis of consistent accounting policy."

12. CONDUCT OF BUSINESSES BY THE UKBIPL UNTIL THE EFFECTIVE DATE

12.1 With effect from the date of approval of this Scheme by the Boards of the UKBIPL and UKBEPL, the UKBIPL undertakes to carry on the business and activities with reasonable diligence, business prudence and shall not except in the ordinary course of business or without prior written consent of UKBEPL or as provided in this Scheme, alienate, charge, mortgage, encumber or otherwise deal with or dispose any business or part thereof, provided that the Board of UKBEPL shall be permitted to enter into transactions for disposal of assets, with third parties on arms-length basis.

12.2 UKBEPL shall be permitted to make any change in their respective capital structure in any manner either by any increase (including by way of issue of equity shares on a rights basis or by way of a public issue, bonus shares and/or convertible debentures or otherwise), decrease, reduction, reclassification, sub-division, consolidation, re-organization, or in any other manner.

12.3 All profits and cash accruing to or losses arising or incurred (including the effect of taxes if any thereon) by UKBIPL after the Appointed Date shall for all purposes be treated as the profits/ cash, taxes or losses of UKBEPL.

12.4 Any of the rights, powers, authorities, privileges attached, related or pertaining to or exercised by UKBIPL shall deemed to have been exercised by UKBIPL for and on behalf of, and in trust for and as an agent of UKBEPL. Similarly, any of the obligations, duties, commitments attached, related or pertaining to the Transferor Company that have been undertaken or discharged by UKBIPL, shall be deemed to have been undertaken for and on behalf of and in trust for and as an agent for UKBEPL.

12.5 As and from the Appointed Date and till the Effective Date:

(a) All assets and investments which are acquired by the Transferor Company on or after the Appointed Date, in accordance with this Scheme, shall be deemed to be the assets and properties of the Transferee Company.

(b) All debts, liabilities, loans raised and used, liabilities and obligations incurred, duties and obligations which arise or accrue to the Transferor Company on or after the Appointed Date in accordance with this Scheme, shall be deemed to be the debts, liabilities, loans raised and used, liabilities and obligations incurred, duties and obligations of the Transferee Company.

(c) The Transferor Company shall not vary the terms and conditions of service of its employees except in the ordinary course of its business.

12.6 With effect from the date of approval of this Scheme by the Boards of the UKBIPL and UKBEPL, UKBIPL shall notify UKBEPL in writing as soon as reasonably practicable of any matter, circumstance, act or omission which is or may be a breach of this Clause 12.

13. VALIDITY OF EXISTING RESOLUTIONS, ETC.

13.1 Upon the effectiveness of this Scheme, the resolutions of UKBIPL, as are considered necessary by the Board of UKBEFL, and that are valid and subsisting on the Effective Date, shall continue to be valid and subsisting and be considered as resolutions of UKBEPL, and if any such resolutions have any monetary limits approved under the provisions of the Act, or any other applicable statutory provisions, then said limits as are considered necessary by the Board of UKBEPL shall be added to the limits, if any, under like resolutions passed by UKBEPL and shall constitute the aggregate of the said limits in UKBEPL.

14. LEGAL PROCEEDINGS

14.1 All legal proceedings, including arbitration proceedings, of whatsoever nature, by or against UKBIPL pending and / or arising at or after the Effective Date, shall not abate or be discontinued or be in any way prejudicially affected by reason of the Scheme or by anything contained in this Scheme but shall, as and from the Effective Date, be continued and enforced by or against UKBEPL in the manner and to the same extent as would or might have been continued and enforced by or against UKBIPL.

14.2 All tax assessment proceedings/appeals of whatsoever nature by or against UKBIPL pending and/or arising at the Appointed Date and relating to UKBIPL shall be continued and/or enforced until the Effective Date by or against UKBIPL. As and from the Effective Date, the tax assessment proceedings / appeals shall be continued and enforced by or against the UKBEPL in the same manner and to the same extent as would or might have been continued and enforced by or against UKBIPL.

14.3 UKBEPL undertakes to have all legal or other proceedings initiated by or against UKBIPL referred to in clause 14.1 above transferred to its name and to have the same continued, prosecuted and enforced by or against UKBEPL after the Effective Date.

14.4 On and from the Effective Date, UKBEPL shall and may, if required, initiate any legal proceedings in relation to the business of the UKBIPL.

15. CONTRACTS, DEEDS AND OTHER INSTRUMENTS

15.1 Subject to other provisions contained in this Scheme, all contracts, deeds, bonds, agreements, arrangements, schemes, insurance policies, indemnities, guarantees and other instruments of whatever nature to which UKBIPL is a party, subsisting or having effect immediately before amalgamation shall be in full force and effect against or in favour of UKBEPL and may be enforced fully and effectively as if instead of the UKBIPL, UKBEPL had been the party thereto.

15.2 With effect from the Effective Date, any transferable statutory licenses, no objection certificates, permissions or approvals or consents required to carry on operations of the UKBIPL shall stand vested in or transferred to UKBEPL without further act or deed, and shall be appropriately mutated by the statutory authorities concerned therewith in favour of UKBEPL upon the vesting and transfer of entire business of the UKBIPL pursuant to the Scheme. The benefit of all transferable statutory and regulatory permissions, environmental approvals and consents including the statutory licenses, permissions or approvals or consents required to carry on the operations of the UKBIPL shall vest in and become available to UKBEPL pursuant to the Scheme.

15.3 UKBEPL, at any time after the coming into effect of this Scheme in accordance with the provisions hereof, if so required under any law or otherwise, will execute deeds of confirmation or other writings or arrangements with any party to any contract or arrangement in relation to the entire business of the UKBIPL to which the UKBIPL is/ was a party in order to give formal effect to the above provisions. UKBEPL shall, under the provisions of this Scheme, be deemed to be authorized to execute any such writings on behalf of the UKBIPL and to carry out or perform all such formalities or compliances referred to above on the part of the UKBIPL.

16. TAXES

16.1 Upon coming into effect of this Scheme, all tax payable by the UKBIPL under Income-tax Act, 1961, Customs Act, 1962, Goods & Service tax, Value Added Tax, Sales tax provisions or other applicable laws/ regulations dealing with taxes/duties/levies (hereinafter referred to as "tax laws") shall be transferred to the account of UKBEPL. Similarly, all credits for tax deduction at source on income of the UKBIPL, or obligation for deduction of tax at source on any payment made by or to be made by the UKBIPL shall be made or deemed to have been made and duly complied with by UKBEPL if so made by UKBIPL. Similarly, any advance tax payment required to be made for by the specified due dates in the tax laws shall also be deemed to have been made by UKBEPL, if so, made by UKBIPL. Further, minimum alternate tax paid by the UKBIPL under Income-tax Act, 1961, shall be deemed to have been paid on behalf of UKBEPL and the credit for minimum alternate tax credit, if any, of UKBIPL as on or accruing after the Effective Date shall stand transferred to UKBEPL and such credit would be available for set off against the tax liabilities of UKBEPL. Any refunds/credit under the tax laws due to UKBIPL consequent to assessments made on UKBIPL shall also belong to and be received by UKBEPL.

16.2 Further, any tax holiday/deduction/exemption enjoyed by UKBIPL under Income-tax Act, 1961 would be transferred to UKBEPL.

16.3 On or after the Effective Date, UKBEPL and UKBIPL are expressly permitted to revise its financial statements and returns along with prescribed forms, filings and annexures under the Income-tax Act, 1961 (including for the purpose of re-computing tax on book profits and claiming other tax benefits), Goods & Service tax law and any other tax laws, and to claim refunds and/or credits for

taxes paid, and to claim tax benefits etc. and for matters incidental thereto, if required to give effect to the provisions of the Scheme from the Effective Date.

16.4 All taxes (including income tax, sales tax, excise duty, goods & service tax, value added tax etc.) paid or payable by UKBIPL in respect of the operations and/or profits of the business before the Appointed Date shall be on account of UKBIPL and in so far it relates to the tax payment (including without limitation, sales tax, excise duty, custom duty, income tax, service tax, value added tax etc.) whether by way of deduction at source, advance tax or otherwise by UKBIPL in respect of profits or activities or operations of the business after the Appointed Date, the same shall be deemed to be the corresponding item paid by UKBEPL and shall in all proceedings be dealt with accordingly.

16.5 The Scheme has been drawn up to comply with the conditions relating to "amalgamation" as specified under section 2(1B) of the Income-tax Act, 1961. If any terms or provisions of the Scheme is/are inconsistent with the provisions of section 2(1B) of the Income-tax Act, 1961, the provisions of section 2(1B) of the Income-tax Act, 1961 shall prevail and the Scheme shall stand modified to the extent necessary to comply with section 2(1B) of the Income-tax Act, 1961; such modification to not affect other parts of the Scheme.

17. TREATMENT OF STAFF AND EMPLOYEES

17.1 On and from the Effective Date, all employees of UKBIPL in service on the Effective Date shall be deemed to have become employees of UKBEPL without any break in their service and on the basis of continuity of service, and on the basis that the employment terms are not less favourable than in UKBIPL.

17.2 UKBEPL agrees that the services of all such employees with UKBIPL up to the Effective Date shall be taken into account for purposes of all retirement benefits to which they may be eligible in UKBIPL on the Effective Date.

17.3 It is expressly provided that, on the Scheme becoming effective, the provident fund, gratuity fund, superannuation fund or any other special fund or trusts created or existing for the benefit of the staff, workmen and employees of UKBIPL shall become the trusts/ funds of UKBEPL for all purposes whatsoever in relation to the administration or operation of such trusts or funds or in relation to the obligation to make contributions to the said trusts or funds in accordance with the provisions thereof as per the terms provided in the respective deeds, if any, to the end and intent that all rights, duties, powers and obligations of UKBIPL in relation to such trusts or funds shall become those of UKBEPL. It is clarified that the services of the staff, workmen and employees of UKBIPL will be treated as having been continuous for the purpose of the said trusts or funds.

18 DISSOLUTION WITHOUT WINDING UP

Upon the coming into effect of this Scheme, the UKBIPL shall stand dissolved without winding up and the Board of Directors and any committee thereof of the UKBIPL shall without any further act, instrument or deed be and stand dissolved. On and from the Effective Date, the name of the UKBIPL shall be struck off from the records of the concerned Registrar of Companies.

PART C

OTHER TERMS AND CONDITIONS APPLICABLE TO THIS SCHEME

19 APPLICATION TO THE NCLT OR SUCH OTHER COMPETENT AUTHORITY

UKBIPL and UKBEPL, shall suo-moto or as may be directed by the NCLT make all necessary joint or separate application(s) and/or petition(s) under the provisions of the Act to the NCLT, for seeking approval of the Scheme and for dissolution of UKBIPL without winding-up under the provisions of the Act.

20 MODIFICATION / AMENDMENT TO THE SCHEME AND GENERAL POWER TO THE BOARD

UKBIPL and UKBEPL with approval of their respective Board of Directors may consent, from time to time, on behalf of all persons concerned (including but not limited to their shareholders and/or creditors and/or stakeholders), to any modifications / amendments or additions / deletions to the Scheme which may otherwise be considered necessary, desirable or appropriate by the said Board of Directors to resolve all doubts or difficulties that may arise for carrying out this Scheme and to do and execute all acts, deeds matters, and things necessary for bringing this Scheme into effect or agree to any terms and / or conditions or limitations that the NCLT or any other authorities under law may deem fit to approve, direct and / or impose. The aforesaid powers of UKBIPL and UKBEPL to give effect to the modification / amendments to the Scheme may be exercised by their respective Board of Directors or any person authorised in that behalf by the concerned Board of Directors subject to approval of the NCLT or any other authorities under the applicable law to such modification / amendments to the Scheme.

21 CONDITIONALITY OF THE SCHEME

The Scheme is conditional upon and subject to the following:

(a) The Scheme being approved by the respective requisite majorities of the shareholders and / or creditors of UKBIPL and UKBEPL as may be directed by the NCLT, Ahmedabad Bench and/or any other competent authority and it being sanctioned by the NCLT, Ahmedabad Bench and/or any other competent authority, as may be applicable;

(b) The sanction by NCLT, Ahmedabad Bench under Section 230-232 and other applicable provisions of the Act;

(c) The requisite consent or approval or representations of the concerned statutory or regulatory authority which by law may be necessary for the implementation of this Scheme; and

(d) The certified copy of the order of NCLT, Ahmedabad Bench under the provisions of the Act sanctioning the Scheme is filed with the Registrar of Companies, Ahmedabad having jurisdiction over UKBIPL and UKBEPL.

22 EFFECT OF NON-RECEIPT OF APPROVALS/SANCTIONS

22.1. In the event of any of the said sanctions and approvals referred in clause 21 are not being obtained and/or the Scheme not being sanctioned by the NCLT or such other competent authority, if applicable and/or the order not being passed as aforesaid before the date as provided by NCLT or such other competent authority, in the event of non-receipt of approval or such other date as the Board of Directors of UKBEPL and UKBIPL may determine, the Scheme shall become null and void, and be of no effect, save and except in respect of any act or deed done prior thereto as is contemplated hereunder or as to any right, liability, or obligations which have arisen or accrued pursuant thereto and which shall be governed and be preserved or worked out as is specifically provided in the Scheme or as may otherwise arise in law and UKBEPL shall bear the charges and expenses in connection with the Scheme unless otherwise mutually agreed.

22.2. In the event of this Scheme failing to take effect or it becomes null and void, no rights and liabilities of whatsoever nature shall accrue to or be incurred *inter-se* to or by the parties to the Scheme or any of them.

22.3. The Board of Directors of the Transferor Company and Transferee Company shall be entitled to withdraw this Scheme on mutual consultation, any time prior to the Effective Date. It is hereby clarified that notwithstanding anything to the contrary contained in this Scheme, neither UKBIPL nor UKBEPL shall be entitled to withdraw the Scheme unilaterally without the prior written consent of the other party.

23 COSTS, CHARGES AND EXPENSES

23.1 On sanction and approval of the Scheme by the NCLT or such other appropriate authority, all costs, charges, taxes including duties, levies and all other expenses, if any (save as expressly otherwise agreed), arising out of or incurred in carrying out and implementing this Scheme and matters incidental thereto, shall be borne by UKBEPL.

24 COMPLIANCE WITH LAWS

24.1 This Scheme is presented and drawn up to comply with the provisions / requirements of sections 230 to 232 of the Companies Act, 2013 for the purpose of amalgamation of UKBIPL with UKBEPL and other related arrangements and compromise, including reorganisation of shareholding, etc., amongst UKBIPL, UKBEPL and / or their respective shareholders and creditors.

24.2 Upon the Scheme becoming effective, the same shall be binding on the Transferor Company and the Transferee Company and all concerned parties including but not limited to their shareholders, creditors, employees, stakeholders, sectoral regulators, etc. without any further act, deed, matter or thing.

24.3 For the purpose of giving effect to the Scheme, the Board of Directors of the Transferor Company and/or the Transferee Company or any Committee thereof or authorised signatories, are severally authorized to give such directions as may be necessary or desirable and to settle as they may deem fit, any question, doubt or difficulty that may arise in connection with or in the working of the Scheme and to do all acts, deeds and things necessary for carrying into effect the Scheme.

24.4 If any part of this Scheme is found to be unworkable for any reason whatsoever, the same shall not, subject to the decision of the Board of Directors or Authorised Signatories of the Transferor Company and/or the Transferee Company, affect the validity or implementation of the other parts/provisions of this Scheme.

24.5 This Scheme has been drawn up to comply with the conditions relating to "amalgamation" as specified under the tax laws, including section 2(1B) and other relevant sections of the Income tax Act, 1961. If any terms or provisions of the Scheme are found to be or interpreted to be inconsistent with any of the said provisions at a later date, whether as a result of any amendment of law or any judicial or executive interpretation or for any other reason whatsoever, the aforesaid provisions of the Income tax Act, 1961 shall prevail. The Scheme shall then stand modified to the extent determined necessary to comply with the said provisions. Such modification will however not affect other clauses of the Scheme. The power to make such amendments as may become necessary shall vest with the Board of Directors of UKBIPL and UKBEPL, which power shall be exercised reasonably in the best interests of the companies concerned and their stakeholders.

24.6 The transfer and vesting of the business of the Transferor Company and the continuance of the said proceedings by or against the Transferee Company shall not affect any transaction or proceedings already concluded by or against the Transferor Company after the Appointed Date to the end and intent that the Transferee Company accepts and adopts all acts, deeds and things done or executed by the Transferor Company after the Appointed Date as done and executed on its behalf. The said transfer and vesting pursuant to Sections 230 to 232 of the Act, shall take effect from the Appointed Date unless the NCLT or other appropriate authorities otherwise directs.

24.7 Upon the Scheme becoming effective, UKBEPL and UKBIPL are expressly permitted to revise its Income Tax return and financial statements as required by regulatory laws.

UKB INDUSTRIES PVT. LTD.

UKB ELECTRONICS PVT. LTD.

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

UKB ELECTRONICS PVT. LTD.

UKB INDUSTRIES PVT. LTD.

Annexure "B"

UKB INDUSTRIES PRIVATE LIMITED

(Formerly known as Manglam Cold Storage Private Limited)
CIN: U45203GJ1989PTC135767
Reg. office: Plot No. WP-168 GIDC-2 Bol village Ta-Sanand Ahmedabad Gujarat 384001
Email: - accounts@ukbindia.com

C.P. (CAA) No. 20 /NCLT/AHM/2023
Connected with
CA (CAA) NO. 69 /NCLT/AHM/2022

SCHEDULE OF ASSETS

Name of the Transferor Company	UKB Industries Private Limited (Formerly Manglam Cold Storage Private Limited)
Corporate Identification Number (CIN)	U45203GJ1989PTC135767
Registered Office	Plot No. WP-168, GIDC-2, Bol Village, Ta-Sanand, Ahmedabad - 382110
Permanent Account Number (PAN)	AADCM7319J
Tax Deduction & Collection Account Number (TAN)	MRTU03705C
GST Registration Number	09AADCM7319J1Z6
Bank Account Details	Name of Bank – Indian Bank Add: 36A, New Mandi, Muzaffarnagar (Meerut) Uttar Pradesh – 251001 **(Branch Code:4148)** A/c No. 50030498723 IFSC: IDIB000M777
Fixed Deposit	7,10,840
Other investments	Investment in Shares of Transferee company: 25,50,000
Electric Connections	NO

IMMOVALBE PROPERTIES	
	Nil

UKB INDUSTRIES PVT. LTD.

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

UKB INDUSTRIES PRIVATE LIMITED

(Formerly known as Manglam Cold Storage Private Limited)
CIN: U45203GJ1989PTC135767
Reg. office: Plot No. WP-168 GIDC-2 Bol village Ta-Sanand Ahmedabad Gujarat 384001
Email: - accounts@ukbindia.com

OTHER ASSETS	
(1) Plant & Machineries	Nil
(2) Others Movable Assets	Cash and Bank Balance: 3,09,013 Deferred Tax Assets: 24,057

For UKB Industries Private Limited

Vinay Kumar Tayal
(Director)
DIN: 00359327

Date: 31/07/2023
Place: Noida